

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

Maggie Castellon, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2310

To contest the ruling, call (408) 808-6856 before 4:00 P.M. or email department19@scscourt.org. Please state your case name, case number, the name of the attorney and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested. Please also make sure you have notified the other side in a timely fashion that you are contesting the tentative ruling. (See R. Ct. 3.1308(a)(1); Local Rule 8.E.)

Court Reporters are not provided. Please consult our Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through Microsoft Teams, unless otherwise arranged with the Court. Please go to https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.
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- Members of the public who wish to observe can do so through Microsoft Teams (using the link discussed above) or in person. Please make sure to turn your camera off and mute yourself if you are observing the proceedings remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while on Microsoft Teams.

LAW AND MOTION TENTATIVE RULINGS

DATE: April 9, 2025

TIME: 1:30 P.M.

PREVAILING PARTY SHALL PREPARE THE ORDER

UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))

LINE #	CASE #	CASE TITLE	RULING
LINE 1	18CV338709	McGill v. On-Site aka On-Site Manager, Inc., et al. (Class Action)	See Line 1 for tentative ruling.
LINE 2	21CV391898	Gatchalian v. CKS Prime Investments, LLC, et al. (Class Action)	See Line 2 for tentative ruling.
LINE 3	22CV397297	Ngo v. Intuitive Surgical, Inc., et al. (Class Action/PAGA)	See Line 3 for tentative ruling.
LINE 4	22CV409085	Olivo v. Khanna Enterprises General Partner, et al. (Class Action)	See Line 4 for tentative ruling.
LINE 5	23CV410334	Becerril v. Watersavers Irrigation, Inc. (Class Action)	See Line 5 for tentative ruling.
LINE 6	24CV438841	Zamorano v. TKS Restaurants, LLC, et al. (Class Action)	No Opposition filed. Motion is GRANTED.
LINE 7			
LINE 8			
LINE 9			

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LAW AND MOTION TENTATIVE RULINGS

LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name: McGill v. On-Site aka On-Site Manager, Inc., et al. (Class Action)
Case No.: 19CV338709

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on April 9, 2025, at 1:30 p.m. in Department 19. The court now issues its tentative ruling as follows:

I. Introduction

This is a putative class action. According to the allegations of the operative Fifth Amended Class Action Complaint for Damages and/or Declaratory Relief and/or Injunctive Relief (“FAC”), filed September 16, 2024, plaintiff Lowri McGill (“Plaintiff”) was a resident and tenant at a residential rental property known as Vine by Vintage. (FAC, ¶ 1.) Plaintiff has now vacated the unit. (Ibid.)

Defendants Woodstone by Vintage, L.P. (“Woodstone”), Hearthstone Housing Foundation (“HHF”), (collectively, “Defendants”) are allegedly the owners, operators, and managers of Vine by Vintage. (FAC at ¶ 2.) Plaintiff alleges that Hearthstone CA Properties I, LLC (“Hearthstone”) is HHF’s alter ego. (*Id.* at ¶ 4.)

Plaintiff alleges that during her tenancy, she was subject to a form lease that contained number of unenforceable provisions. (FAC at 1, 10-11, 14-16.) As is relevant here, paragraph five of the lease allegedly provides that “there is a late fee of \$50 if rent is not paid within 2 days of the due date,” “it is impracticable and extremely difficult to fix the amount of damages suffered by owner,” and the late fee “is ‘reasonable approximation’ of the damages incurred for such breach.” (*Id.* at ¶ 11.) Plaintiff alleges the late fee provision violates Civil Code sections 1671, subdivisions (c) and (d).¹ (Ibid.) Plaintiff further alleges that “[t]he payment of late fees

¹ Civil Code section 1671, subdivisions (b) and (c) provide:

(b) Except as provided in subdivision (c), a provision in a contract liquidating the damages for the breach of the contract is valid unless the party seeking to invalidate the provision establishes that the provision was unreasonable under the circumstances existing at the time the contract was made.